

THE COTTON GINNING AND PRESSING FACTORIES ACT
1925
(XII of 1925)

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TEXT

¹THE COTTON GINNING AND PRESSING FACTORIES ACT, 1925 (XII of 1925)

[21 March 1925]

An
Act

to provide for the better regulation of cotton ginning and cotton pressing factories.

WHEREAS it is expedient to provide for the better regulation of cotton ginning and cotton pressing factories; It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Cotton Ginning and Pressing Factories Act, 1925.

(2) ²[It extends to the whole of ³[the Province of the Punjab].]

(3) It shall come into force on such date as the ⁴[⁵[Provincial Government]] may, by notification in the ⁶[Official Gazette], appoint.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

- (a) “bale” means any pressed package of cotton of whatever size or density;
- (b) “cotton” means ginned or unginned cotton, or cotton waste;
- (c) “cotton ginning factory” means any place where cotton is ginned or where cotton fibre is separated from cotton seed by any process whatever involving the use of steam, water or other mechanical power or of electrical power;
- (d) “cotton pressing factory” means any factory as defined in the Indian Factories Act, 1911⁷, in which cotton is pressed into bales;

¹For Statement of Objects and Reasons, see Gazette of India, 1924, Part. V, at p. 115; and for report of Select Committee, see *ibid.*, 1925, Part V, at p. 59. This Act has been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. III of 1950); and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Part I, at p. 1499. This Act was published in the Gazette of India, Part IV, dated 21.3.1925, at pp. 19-21.

²The original sub-section (2) of Section 1 “(2) It extends to the whole of British India (except Burma) including British Baluchistan and the Sonthal Parganas.” was amended successively: Firstly, The words (except Burma) is omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, w.e.f. 1.4.1937 as amended by the Government of India (Adaptation of Indian Laws) Supplementary Order, 1937. Secondly, the words “and the Sonthal Parganas” by the Adaptation of Central Acts and Ordinances Order, 1949 (G.G.O. 4 of 1949), published in the Gazette of Pakistan (Extraordinary) dated 28.3.1949, pp. 223-283, see Article 3 read with Schedule. Thirdly, the words “British Baluchistan” is substituted for the word “Baluchistan” by the Federal Laws (Revision and Declaration) Act, 1951 (XXVI of 1951), published in the Gazette of Pakistan (Extraordinary), dated 12.5.1951, pp. 340-388, see s. 8. Fourthly, sub-section (2) was substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated 9.6.1960, see s. 3 read with Second Schedule.

³Substituted for the word “Pakistan” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2 and Entry No. 19 of Part-I of Schedule.

⁴Substituted for the words “Governor General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 4, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵Substituted for the words “Central Government” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, Article 2 and Entry No. 19 of Part-I of Schedule.

⁶Substituted for the words “Gazette of India” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷Now the Factories Act, 1934 (XXV of 1934) as the Factories Act, 1911 (XII of 1911) was repealed by the Schedule of the Factories Act, 1934.

- (e) “cotton waste” means droppings, strippings, fly and other waste products of a cotton mill or of a cotton ginning factory or of a cotton pressing factory, but does not include yarn waste;
- (f) “¹[Pakistan Central Cotton Committee]” means the ²[Pakistan Central Cotton Committee] constituted under the ³[Cotton Cess (Amendment) Act, 1948], and includes any sub-committee appointed by it to perform any function of the ⁴[Pakistan Central Cotton Committee] under this Act; and
- (g) “Occupier” includes a managing agent or other person authorised to represent the occupier;
- (h) “prescribed” means prescribed by or under rules made under this Act.

3. Maintenance of registers.— (1) The owner of every cotton ginning factory shall cause to be maintained at the factory in such form, if any, as may be prescribed, a ginning register containing a record of all cotton ginned in the factory and of the names of the persons for whom and the dates on which the cotton has been ginned and of the amount ginned for each person.

(2) The owner of every cotton pressing factory shall cause to be maintained at the factory in such form, if any, as may be prescribed, a press register containing a daily record of the number of bales pressed in the factory, the serial number of each bale, and the name of the person for whom it has been pressed.

(3) The owner or the person in charge of a cotton ginning or cotton pressing factory shall be bound to produce any ginning register or press register maintained under this section when required to do so by any person appointed by the ⁵[Provincial Government] in this behalf, and the owner or person in charge of any cotton pressing factory shall be bound to furnish to the ⁶[Pakistan Central Cotton Committee], if so required by it in writing, a copy, certified as correct by the owner or person in charge of the factory, of the entry in any press register maintained at the factory relating to any specified bale.

(4) No register required to be maintained by this section shall be destroyed until after the expiration of three years from the date of the last entry therein.

(5) If—

- (a) in any factory any register required by this section to be maintained is not maintained or is maintained in any form other than the form, if any, prescribed for the purpose, or
- (b) any entry in any such register is proved to be false in any material particular, or
- (c) any such register is destroyed before the expiration of the period referred to in sub-section (4),

¹Substituted for the words “Indian Central Cotton Committee” by the Central Acts and Ordinances Order, 1949 vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, Article 3 read with the Schedule.

²*Ibid.*

³Substituted for the words “Indian Cotton Cess Act, 1923” *ibid.*

⁴Substituted for the words “Indian Central Cotton Committee” *ibid.*

⁵Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, at pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁶Substituted for the words “Indian Central Cotton Committee” by the Central Acts and Ordinances Order, 1949 vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, Article 3 read with the Schedule.

the owner of the factory shall be punished with fine which may extend to fifty rupees or, if he has previously been convicted of any offence under this sub-section, to five hundred rupees.

(6) If the owner or the person in charge of any factory fails to produce any register, or to furnish a certified copy of any entry, when required to do so under sub-section (3), or furnishes a certified copy of an entry knowing or having reason to believe such copy to be false, he shall be punished with fine which may extend to fifty rupees or, if he has previously been convicted of any offence under this sub-section, to five hundred rupees.

4. Marking of bales.— (1) The owner of every cotton pressing factory shall cause every bale pressed in the factory to be marked in such manner as may be prescribed, before it is removed from the press-house, with a serial number and with the mark prescribed for the factory.

(2) If any bale is removed from the press-house of any cotton pressing factory without having been marked as required by sub-section (1), the owner of the factory shall be punished with fine which may extend to fifty rupees.

5. Returns.— (1) The owner of every cotton pressing factory shall submit to the prescribed authority, within such time and in such form as may be prescribed, weekly returns showing the total number of bales of cotton pressed during the preceding week and from the commencement of the season to the end of that week, and the approximate average net weight of the bales pressed in that week.

(2) The ¹[Provincial Government] shall compile from the weekly returns, and shall publish in such manner as ²[it thinks fit], a statement showing the total number of bales pressed in the Province during the week and from the commencement of the season to the end of the week, to which the returns relate:

Provided that the number of bales pressed in any individual factory shall not be published.

(3) If default is made in submitting any return as required by sub-section (1), the owner of the factory shall be punished with fine which may extend to fifty rupees.

(4) Where the owner of a cotton pressing factory has notified to the prescribed authority that the work of pressing bales in that factory has been suspended, it shall not be necessary for the owner to submit returns under sub-section (1) until such work has been resumed.

Explanation.— In this section “season” means the period notified in this behalf by the ³[Provincial Government] in the ⁴[Official Gazette].

⁵**[5A. Returns from cotton ginning factories.**— ⁶[(1) The Provincial Government may, by notification in the official Gazette, bring this section into force in any part of the Province.]]

(2) The owner of every cotton ginning factory shall submit to the prescribed authority, within such time and in such form as may be prescribed, weekly returns showing

¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

²Substituted for the words “the Governor-General in Council may direct” *ibid.*, Article 3 read with Schedule I.

³Substituted for the words “Local Government” *ibid.*, Article 4(1) read with Table of General Adaptations.

⁴Substituted for the words “local official Gazette” *ibid.*

⁵Inserted by the Cotton Ginning and Pressing Factories (Amendment) Act, 1942 (IX of 1942), published in the Gazette of India, Part-IV, dated March 21, 1942, p. 20, s. 2.

⁶Substituted by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, pp. 725-845, s. 3 read with Schedule.

⁷Substituted by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, s. 2 and Entry No. 19 of Part-I of Schedule.

the quantity of cotton ginned in the factory during the preceding week and from the commencement of the season to the end of that week.

(3) The Provincial Government shall compile from the weekly returns so submitted and shall publish in such manner as it thinks fit, a statement showing the total quantity of cotton ginned in the Province during the week and from the commencement of the season to the end of the week, to which the returns relate:

Provided that the quantity of cotton ginned in any individual factory shall not be published.

(4) If default is made in submitting any return as required by sub-section (2), the owner of the factory shall be punished with the fine which may extend to fifty rupees.

(5) The provisions of sub-section (4) of section 5 apply to cotton ginning factories and the returns referred to in sub-section (2) of this section as they apply to cotton pressing factories and the returns referred to in sub-section (1) of section 5, and "season" in this section means the season as notified for the purposes of section 5.]

6. Scales and weights.— (1) No scales or weights shall be used in any cotton ginning or cotton pressing factory other than the scales or weights, if any, prescribed by the ¹[Federal] Government] as standard for the district in which the factory is situated.

(2) If in any factory any scale or weight is used in contravention of the provisions of sub-section (1), the owner of the factory shall be punished with fine which may extend to fifty rupees or, if he has been previously convicted of any offence under this sub-section, to five hundred rupees.

7. Liability of lessee as owner.— (1) Where the owner of a cotton ginning or pressing factory has leased the factory for a period of not less than one month, in the case of a cotton ginning factory or three months, in the case of a cotton pressing factory, and the lessor retains no interest in the management or profits of the factory and notice of the lease has been given by the lessor and the lessee to the prescribed authority, the lessee shall be deemed to be the owner of the factory, from the date of the notice and for the period of the continuance of the lease, for the purposes of section 3, in respect of the registers maintained or to be maintained from that date and for that period, and for the purposes of sections 4, 5 ³[, 5A] and 6.

(2) On the termination of the lease the lessee shall hand over to the lessor the registers maintained under section 3, and the lessor shall forthwith report to the prescribed authority any default of the lessee in complying with the provisions of this sub-section or in maintaining the registers in accordance with the provisions of section 3.

(3) If default is made in handing over any register or making any report as required by this section, the lessor or the lessee, as the case may be, shall be punished with fine which may extend to fifty rupees.

8. Liability on transfer of ownership.— (1) On a transfer of the ownership of a cotton ginning or pressing factory, the transferor shall hand over to the transferee the registers maintained under section 3, and the transferee shall forthwith report to the prescribed authority any default of the transferor in complying with the provisions of this sub-section or in maintaining the registers in accordance with the provisions of section 3.

¹Substituted for the words "Local Government" by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

²Substituted for the word "Central" by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, s. 2 and Entry No. 19 of Part-I of Schedule.

³Inserted by the Cotton Ginning and Pressing Factories (Amendment) Act, 1942 (IX of 1942), published in the Gazette of India, Part-IV, dated March 21, 1942, p. 20, s. 3.

(2) If default is made in handing over any register or making any report as required by sub-section (1), the transferor or the transferee, as the case may be, shall be punished with fine which may extend to fifty rupees.

9. Structural requirements for factories.— (1) In the case of cotton ginning factories the construction of which is commenced after the commencement of this Act—

- (a) gin-houses shall be provided with separate entrances and exits for the bringing in of unginmed and the taking out of ginned cotton respectively, and
- (b) the factories shall be constructed in accordance with plans and specifications approved by the prescribed authority:

Provided that nothing in this sub-section shall apply to any factory in which only roller gins are used where the number of such gins is not more than four.

¹[(1A) In any cotton ginning factory, whether erected before or after the commencement of this Act—

- (a) no structural alterations or additions, the construction of which commenced after the 27th day of February, 1939, shall be made so as to minimise the degree of compliance of the factory as a whole with the requirements set forth in clauses (a) and (b) of sub-section (1), and
- (b) every structural addition (whether actually attached to any existing structure in the factory or not), the construction of which commenced after the last mentioned date, shall be constructed in accordance with plans and specifications approved by the prescribed authority:

Provided that nothing in this sub-section shall apply to any factory in which, after any alteration or addition has been made, only roller gins are used where the number of such gins is not more than four.]

(2) Within such period after the commencement of this Act as may be prescribed, the owner of every cotton pressing factory in which cotton is handled on the ground floor shall cause the press-house to be paved or provided with other suitable flooring to the satisfaction of the prescribed authority.

(3) If the owner of any factory fails to comply with any provision of this section which is applicable to the factory, he shall be punished with fine which may extend to one hundred rupees.

(4)(a) Where the owner of a factory has been convicted under sub-section (3), the prescribed authority may serve on the owner of the factory an order in writing directing that such alterations shall be made in the factory, before a specified date, as in the opinion of the said authority are necessary to secure compliance with the provisions of sub-section (1) ²[, sub-section (1A)], or sub-section (2) as the case may be.

- (b) Where the alterations are not made in accordance with the order served under clause (a) of this sub-section, the prescribed authority may serve on the owner and on the occupier, if any, of the factory an order in writing directing that the work of ginning or pressing cotton in such factory shall be suspended until the alterations have been made in accordance with the order served under clause (a) of this sub-section and the owner and the occupier, if any, shall be jointly and severally liable to fine which may extend to fifty

¹Inserted by the Cotton Ginning and Pressing Factories (Amendment) Act, 1939 (XIV of 1939), published in the Government Gazette, Punjab, Part-IV, dated April 14, 1939, pp. 73-74, clause (a) of s. 2.

²Inserted by the Cotton Ginning and Pressing Factories (Amendment) Act, 1939 (XIV of 1939), published in the Government Gazette, Punjab, Part-IV, dated April 14, 1939, pp. 73-74, clause (b) of s. 2.

rupees for each day on which cotton is ginned or pressed in the factory in contravention of the order served under this clause.

10. Liability of officers of a company.— Where the person, guilty of an offence under this Act is a company, every director, manager, secretary and other officer thereof, who is knowingly a party to the default shall also be guilty of the like offence and liable to the like punishment.

11. Cognizance of offences.— (1) No prosecution under this Act shall be instituted except by or with the previous sanction of the District Magistrate ¹[* * *] or a Magistrate of the first class specially empowered in this behalf by the ²[Provincial Government].

(2) No offence punishable under this Act shall be tried by any Court inferior to that ³[* * *] of a Magistrate of the first class.

12. Power of the ⁴[Provincial Government] to make rules.— The ⁶⁷[Provincial Government] may make rules to provide for—

- (a) the allotment of a special mark to be used by each pressing factory for the purpose of the marking of bales;
- (b) the manner in which bales shall be marked; and
- ⁸[(c) the standard weights and scales to be used in cotton ginning and cotton pressing factories in any part of ⁹¹⁰[Pakistan]] and the inspection of the same.]

13. Power of the ¹¹[Provincial Government] to make rules.— The ¹²¹³[Provincial Government] may by notification in the ¹⁴[Official Gazette], make rules consistent with this Act to provide for all or any of the following matters, namely:—

¹Omitted the words “or Chief Presidency Magistrate” by the Central Acts and Ordinances Order, 1949 vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, Article 3 read with the Schedule.

²Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

³Omitted the words “of a Presidency Magistrate or” by the Central Acts and Ordinances Order, 1949 vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, Article 3 read with the Schedule.

⁴Substituted for the words “Governor General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 4, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁵Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, s. 2 and Entry No. 19 of Part-I of Schedule.

⁶Substituted for the words “Governor General in Council” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 4, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

⁷Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, s. 2 and Entry No. 19 of Part-I of Schedule.

⁸Substituted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 3 read with Schedule I.

⁹Substituted for the words “British India” by the Central Acts and Ordinances Order, 1949 vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, Article 3(2) read with Article 4.

¹⁰Substituted for the words “the Provinces and the Capital of the Federation” by the Central Laws (Statute Reform) Ordinance, 1960 (XXI of 1960), published in the Gazette of Pakistan (Extraordinary), dated June 9, 1960, see s. 3 read with Second Schedule.

¹¹Substituted for the words “Local Government” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

¹²*Ibid.*

¹³Substituted for the word “Central” by the Punjab Laws (Adaptation) Order, 1974 (I of 1974), published in the Punjab Gazette (Extraordinary), dated November 20, 1974, pp. 1425-A-1425-PP, s. 2 and Entry No. 19 of Part-I of Schedule.

¹⁴Substituted for the words “local official Gazette” by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, pp. 75-344, Article 4(1) read with Table of General Adaptations.

- (a) the forms in which registers, records and returns are to be maintained or submitted, and the inspection of records and registers;
- (b) the appointment of the authority to whom and the time within which the returns required by ¹[sections 5 and 5A] shall be made;
- ²[(c) * * * * *]
- (d) the appointment of authorities for the purposes of sections 7, 8 and 9;
- (e) the manner of service of orders made under section 9;
- (f) the powers of entry and inspection which may be exercised by District Magistrates or by any officer specially empowered in this behalf by the ³[Provincial Government];
- (g) any other matter which is to be or may be prescribed or for which provision is necessary in order to carry out the purposes of this Act.

14. Power to reject unmarked bales in fulfilment of contracts.— ⁴[(1)] After the expiration of one year from the commencement of this Act, any person who has made a contract for the purchase of baled cotton may require that no bales other than bales marked ⁵[with the mark prescribed under section 4 for the factory in which they were pressed,] shall be supplied in fulfilment of such contract, and, if he does so require, no bale not so marked shall be tenderable in fulfilment of the contract:

⁶[* * * * *]

⁷[(2)] Any bale marked in accordance with the provisions of section 4 shall, within the meaning of the [*]⁸ Evidence Act, 1872, be presumed for all purposes as between the parties to a contract for the purchase of baled cotton, to have been so marked before leaving the factory in which it was pressed.]

15. Protection for acts done under Act.— No suit or other legal proceeding shall be instituted against any person in respect of anything which is in good faith done or intended to be done under this Act.

¹Substituted for the word and figure "section 5" by the Cotton Ginning and Pressing Factories (Amendment) Act, 1942 (IX of 1942), published in the Gazette of India, Part-IV, dated March 21, 1942, p. 20, s. 4.

²Omitted by the Government of India (Adaptation of Indian Laws) Order, 1937, published in the Gazette of India (Extraordinary), dated April 1, 1937, at pp.75-344, Article 3 read with Schedule I.

³Substituted for the words "Local Government" *ibid.*, Article 4(1) read with Table of General Adaptations.

⁴Renumbered by the Cotton Ginning and Pressing Factories (Amendment) Act, 1939 (XIV of 1939), published in the Government Gazette, Punjab, Part-IV, dated April 14, 1939, pp. 73-74, sub-section (1) of s. 3.

⁵Substituted for the words and figure "in accordance with section 4" *ibid.*, clause (a) of sub-section (1) of s. 3.

⁶Omitted by the Cotton Ginning and Pressing Factories (Amendment) Act, 1939 (XIV of 1939), published in the Government Gazette, Punjab, Part-IV, dated April 14, 1939, pp. 73-74, clause (b) of sub-section (1) of s. 3.

⁷Added *ibid.*, sub-section (2) of s. 3.

⁸Omitted the word "Indian" from the title of the Indian Evidence Act, 1872 by the Central Acts and Ordinances Order, 1949, vide Notification No. G.G.O. 4, dated March 25, 1949, published in the Gazette of Pakistan (Extraordinary), dated March 28, 1949 pp. 223-283, s. 3(1) and Schedule and the Evidence Act, 1872 (I of 1872) was repealed by the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984), published in the Gazette of Pakistan (Extraordinary), Part-I, dated October 28, 1984, pp. 587-642, s. 166.